

Ram Magan Chauhan @ Ram Magan v. State of U.P. & Ors.

High Court of Judicature at Allahabad, Lucknow Bench · Division Bench · 7 May 2025 · 2025:AHC-LKO:26708-DB · Writ-C No. 4366 of 2025 · **Writ disposed of; connection from petitioner-funded transformer held permissible under 4.29.**

HEADNOTE

A subsequent consumer may be supplied from a transformer installed at another consumer's expense. The High Court accepted that para 4.29 of the U.P. Electricity Supply Code, 2005 permits such a connection, declined to interfere, and disposed of the writ without prejudice to other remedies. A late plea that a pole stood on the petitioner's field was left to the Executive Engineer to consider on application after verification and hearing.

FACTUAL SUMMARY

The petitioner, Ram Magan Chauhan, approached the Lucknow Bench complaining that an electricity connection had been given to opposite party No. 5 from a transformer installed at the petitioner's expense, which he said was not permitted. Counsel for the electricity corporation invoked paragraph 4.29 of the U.P. Electricity Supply Code, 2005. At the hearing the petitioner also alleged that an electricity pole had been installed on his field.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::4.29(b)

sharing of consumer-funded transformer

HOLDING

A connection to a subsequent consumer from a transformer installed at the petitioner's expense is permissible under para 4.29 of the U.P. Electricity Supply Code, 2005. Counsel for the petitioner could not show the legal position was otherwise. The Court declined to interfere and disposed of the writ, without prejudice to other remedies prescribed in law. ¶ 1

FLAG Court cited para 4.29 generally; catalog hit is 4.29(b).

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — WHETHER AN ELECTRICITY POLE WAS INSTALLED ON THE PETITIONER'S FIELD AND WHAT FOLLOWS

Petitioner may approach the authorities or prescribed remedies; any application to the Executive Engineer shall be considered after verification and hearing of affected parties. ¶ 1